

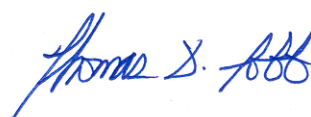


A COMMUNITY OF CHOICE

CITY ENGINEER'S OFFICE
2101 O'Neil Avenue
Cheyenne, Wyoming 82001

MEMO

TO: Honorable Mayor Patrick Collins, City of Cheyenne
City Council Members

FROM: Thomas D. Cobb, PE, City Engineer 

DATE: August 14, 2023

SUBJECT: **Cooperative Agreement between Wyoming Department of Transportation and the City of Cheyenne**
Project ARSCT N561A02
US 30/ Pershing Boulevard to Christensen Road Cheyenne Streets, Laramie County

Please find the attached the proposed Cooperative Agreement for Federal Project No. ARSCT N561A02, US 30/ Pershing Boulevard to Christensen Road Cheyenne Streets in Laramie County provided by WYDOT to the City of Cheyenne for your approval and execution. The agreement is summarized below for your information.

Purpose of Project:

A multi-disciplinary, multi-entity (Cheyenne MPO, City of Cheyenne, WYDOT, and Laramie County) study of the US 30 Corridor concluded in 2020. The study resulted in a recommendation and preliminary design for US 30 US 30 (Pershing Boulevard to Christensen Road). The study recommended project improvements in the corridor to support planned growth in the southeast portion of the Cheyenne urban area. That growth is occurring, and traffic volume is increasing as expected. More details on the purpose and need are available through the Cheyenne MPO's website:

<https://www.plancheyenne.org/wp-content/uploads/2018/08/East-Dell-Report-Final-Online.pdf>

Purpose of Agreement:

In summary the primary purpose of the agreement is to set forth the terms and conditions by the City shall agree to reimburse WYDOT for its share of actual costs incurred to the project, less previous payments, within forty-five (45) days after billing.

Upon completion and acceptance of the project by WYDOT and the City, the City shall maintain, at its sole expense, the roadways in compliance with all applicable federal and state standards and regulations. Maintenance shall include all repairs necessary to keep the improvements in their

functional constructed conditions. The City agrees not to permanently close or abandon the roadways without written consent by WYDOT.

Responsibilities:

City of Cheyenne.

- Submit a letter designating a qualified project representative at no cost to WYDOT capable of authorizing to make timely decisions concerning the project.
- Obligated financially contribution as outlined in Exhibit B for the following elements:
 - Eleven (11) percent of the Total Direct Costs for Indirect Cost Allocation Plan (ICAP) associated with overhead expenditures for administering a project by WYDOT.
 - Obligated financially for ten (10) percent each of the estimated construction cost for Construction Engineering and Preliminary Engineering.
- If the actual costs exceed twenty (20) percent of the total estimated costs, both parties agree upon and sign an amendment for the additional costs.
- Approve final plans and estimates prior to advertisement by WYDOT.
- Upon completion of the project and acceptance by WYDOT, the City shall maintain, at its sole expense, all features constructed under this agreement. Maintenance shall include all repairs necessary to keep improvement in its functional constructed condition.
- Once the Acceptance Certificate has been completed, the City shall be responsible for all storm water runoff on the project and storm water monitoring until a Notice of Termination (NOT) can NPDES and monitoring.

WYDOT.

- WYDOT will conduct preliminary survey work, engineering investigations, National Environmental Policy Act (NEPA) Compliance and right-of-way studies and will develop final design plans and estimates for widening Christensen Road north of US 30, pedestrian underpass lighting, decorative concrete placement in US 30 median, removal of existing Greenway including low flow barrier walls, electrical, pumps, etc. and new Greenway path.
- WYDOT will perform construction engineering for this project in accordance with project plans and specifications.
- WYDOT will advertise this project and award a bid to the lowest qualified bidder in accordance with WYDOT policies.

Estimated Cost:

The Total City Portion of the project including construction administration and construction cost estimated by WYDOT is \$1,198,800 and \$2,080,000 for the Pedestrian Underpass. Total cost anticipated at \$1,198,800 from the Optional One Percent Sales Tax (2023 – 2026) 5th Penny and (\$2,080,000 - \$461,169 = \$1,618,831; say, \$1,625,000) for the 6th Penny Specific Purpose Tax per separate CSA agreement City Contract #7326.

**COOPERATIVE AGREEMENT
BETWEEN THE
WYOMING DEPARTMENT OF TRANSPORTATION
AND THE
CITY OF CHEYENNE**

Project ARSCT N561A02
US 30/Pershing Blvd. to Christensen Road
Cheyenne Streets
Laramie County

1. **Parties.** The parties to this Cooperative Agreement (Agreement) are the Wyoming Department of Transportation (WYDOT), whose address is 5300 Bishop Boulevard, Cheyenne, Wyoming 82009, and the City of Cheyenne (City), whose address is 2101 O'Neil Avenue, Wyoming 82001.
2. **Purpose of Agreement.** The purpose of this Agreement is to set forth the terms and conditions by which WYDOT and the City will install stamped and colored concrete in the median on US 30 between Pershing Boulevard and Whitney Road, remove portions of the existing greenway and associated features, install new Greenway path, install lighting at the intersection of US 30 and Christensen Road, and realign the south leg of the intersection of US 30 and Whitney Road. The location of the project is as shown on Exhibit A, Location Map, which is attached to and incorporated into this Agreement by this reference. This project is associated with the WYDOT main project N561041.
3. **Term of Agreement.** This Agreement is effective when all parties have executed it (Effective Date). The term of the Agreement is from the Effective Date through the completion of the project. All services shall be completed during this term. However, the Parties agree that maintenance requirements described in Section 5 Subsection E are indefinite.
4. **Payment.**
 - A. The City agrees to pay WYDOT the entire actual cost of this project, including all indirect costs through the current Indirect Cost Allocation Plan (ICAP) rate as approved by the Federal Highway Administration (FHWA), within forty-five (45) days after billing. Estimated costs are set forth on the Exhibit B, Summary of Project Costs, which is attached to and incorporated into this Agreement by this reference. ICAP is a rate built into WYDOT's accounting system for overhead expenditures for administering a project. The ICAP rate is developed by WYDOT and approved by the FHWA, with the new rate taking effect immediately. The current rate of eleven percent (11%) is effective until September 30, 2024, at which time the rate is subject to change based on FHWA approval. The ICAP rate will be charged on total direct costs of this project, as shown in Exhibit B.
 - B. The costs shown in Exhibit B are estimates only and the City understands that the final costs may be higher or lower. If the actual costs go over by twenty percent

(20%) of the total estimated costs, both parties must agree and sign an amendment for the additional costs.

- C. WYDOT will bill the City on a monthly basis unless otherwise agreed upon between the parties.

5. **Responsibilities of City.** The City agrees to:

- A. Pay WYDOT in accordance with Section 4 above.
- B. Submit a letter to WYDOT designating a qualified project representative, at no cost to WYDOT, capable of making timely decisions and authorized to sign documents concerning the construction of the project.
- C. WYDOT will give the City the opportunity to review and comment on the estimates prior to the advertisement of bids.
- D. WYDOT will ask the City to concur in the award of this project to the lowest qualified bidder. As a result of signing the Letter of Concurrence, the City agrees to amend estimated costs to match the actual bid amount.
- E. Upon completion and acceptance of this project, the City shall maintain, at its sole expense, all features constructed under this Agreement. Maintenance shall include all repairs necessary to keep the improvement in its functional constructed condition.
- F. Upon completion and acceptance of the project by WYDOT and the City, the City shall return, within thirty (30) days of WYDOT Resident Engineer's request, WYDOT's Acceptance Certificate, or any other required WYDOT documents. Once this Acceptance Certificate has been completed, all National Pollutant Discharge Elimination System (NPDES) General Permits related to the project will be transferred to the City. The City shall then be responsible for all storm water runoff on the project and storm water monitoring until a Notice of Termination (NOT) can be submitted for the project by the City. In the event petroleum contaminated soil or water is encountered on this project, the required work associated with mitigation of the contamination will become part of this project.

6. **Responsibilities of WYDOT.** WYDOT agrees to:

- A. Conduct preliminary survey work, engineering investigations, National Environmental Policy Act (NEPA) Compliance, and right-of-way studies and will develop final design plans and estimates for installing lighting at the Christensen Road intersection, decorative concrete placement in the US 30 median, removal of existing Greenway including low flow barrier walls, electrical, pumps, etc. and new Greenway path.

- B. Perform construction engineering for this project in accordance with project plans and specifications.
- C. Advertise this project and award a bid to the lowest qualified bidder in accordance with WYDOT policies.

7. **General Provisions.**

- A. **Amendments.** Any changes, modifications, revisions, or amendments to this Agreement which are mutually agreed upon by the parties to this Agreement shall be incorporated by written instrument, executed by all parties to this Agreement.
- B. **Applicable Law, Rules of Construction, and Venue.** The construction, interpretation, and enforcement of this Agreement shall be governed by the laws of the State of Wyoming, without regard to conflicts of law principles. The terms “hereof,” “hereunder,” “herein,” and words of similar import, are intended to refer to this Agreement as a whole and not to any particular provision or part. The Courts of the State of Wyoming shall have jurisdiction over this Agreement and the parties. The venue shall be the First Judicial District, Laramie County, Wyoming.
- C. **Assignment Prohibited and Agreement Shall Not be Used as Collateral.** Neither party shall assign or otherwise transfer any of the rights or delegate any of the duties set out in this Agreement without the prior written consent of the other party. The City shall not use this Agreement, or any portion thereof, for collateral for any financial obligation without the prior written permission of WYDOT.
- D. **Audit and Access to Records.** WYDOT and its representatives shall have access to any books, documents, papers, electronic data, and records of the City which are pertinent to this Agreement.
- E. **Award of Related Agreements.** WYDOT may award supplemental or successor agreements for work related to this Agreement or may award agreements to other contractors for work related to this Agreement. The City shall cooperate fully with other contractors and WYDOT in all such cases.
- F. **Compliance with Laws.** The City shall keep informed of and comply with all applicable federal, state, and local laws and regulations in the performance of this Agreement.
- G. **Confidentiality of Information.** Except when disclosure is required by the Wyoming Public Records Act or court order, all documents, data compilations, reports, computer programs, photographs, data, and other work provided to or produced by the City in the performance of this Agreement shall be kept confidential by the City unless written permission is granted by WYDOT for its release. If and when the City receives a request for information subject to this Agreement, the City shall notify WYDOT within ten (10) days of such request and shall not release such information to a third party unless directed to do so by WYDOT.

- H. Entirety of Agreement.** This Agreement, consisting of eight (8) pages; Exhibit A, Location Map, consisting of one (1) page; and Exhibit B, Summary of Project Costs, consisting of one (1) page, represents the entire and integrated Agreement between the parties and supersedes all prior negotiations, representations, and agreements, whether written or oral. In the event of a conflict or inconsistency between the language of this Agreement and the language of any attachment or document incorporated by reference, the language of this Agreement shall control.
- I. Ethics.** The City shall keep informed of and comply with the Wyoming Ethics and Disclosure Act (Wyo. Stat. § 9-13-101, *et seq.*) and any and all ethical standards governing City's profession.
- J. Extensions.** Nothing in this Agreement shall be interpreted or deemed to create an expectation that this Agreement will be extended beyond the term described herein. Any extension of this Agreement shall be initiated by WYDOT and shall be accomplished through a written amendment between the parties entered into before the expiration of the original Agreement or any valid amendment thereto, and shall be effective only after it is reduced to writing and executed by all parties to the Agreement.
- K. Force Majeure.** Neither party shall be liable for failure to perform under this Agreement if such failure to perform arises out of causes beyond the control and without the fault or negligence of the nonperforming party. Such causes may include, but are not limited to, acts of God or the public enemy, fires, floods, epidemics, quarantine restrictions, freight embargoes, and unusually severe weather. This provision shall become effective only if the party failing to perform immediately notifies the other party of the extent and nature of the problem, limits delay in performance to that required by the event, and takes all reasonable steps to minimize delays.
- L. Indemnification.** Each party to this Agreement shall assume the risk of any liability arising from its own conduct. Neither party agrees to insure, defend, or indemnify the other.
- M. Independent Contractor.** The City shall function as an independent contractor for the purposes of this Agreement and shall not be considered an employee of the State of Wyoming for any purpose. Consistent with the express terms of this Agreement, the City shall be free from control or direction over the details of the performance of services under this Agreement. The City shall assume sole responsibility for any debts or liabilities that may be incurred by the City in fulfilling the terms of this Agreement and shall be solely responsible for the payment of all federal, state, and local taxes which may accrue because of this Agreement. Nothing in this Agreement shall be interpreted as authorizing the City or its agents or employees to act as an agent or representative for or on behalf of the State of Wyoming or WYDOT or to incur any obligation of any kind on behalf of the State of Wyoming or WYDOT. The City agrees that no health or hospitalization benefits, workers' compensation, unemployment insurance or similar benefits available to State of

Wyoming employees will inure to the benefit of the City or the City's agents or employees as a result of this Agreement.

- N. Nondiscrimination.** The City shall comply with the Civil Rights Act of 1964, the Wyoming Fair Employment Practices Act (Wyo. Stat. § 27-9-105, *et seq.*), the Americans with Disabilities Act (ADA), 42 U.S.C. § 12101, *et seq.*, and the Age Discrimination Act of 1975 and any properly promulgated rules and regulations thereto and shall not discriminate against any individual on the grounds of age, sex, color, race, religion, national origin, or disability in connection with the performance under this Agreement.
- O. Notices.** All notices arising out of, or from, the provisions of this Agreement shall be in writing either by regular mail or delivery in person at the addresses provided under this Agreement.
- P. Ownership and Return of Documents and Information.** WYDOT is the official custodian and owns all documents, data compilations, reports, computer programs, photographs, data, and other work provided to or produced by the City in the performance of this Agreement. Upon termination of services, for any reason, the City agrees to return all such original and derivative information and documents to WYDOT in a useable format. In the case of electronic transmission, such transmission shall be secured. The return of information by any other means shall be by a parcel service that utilizes tracking numbers.
- Q. Prior Approval.** This Agreement shall not be binding upon either party, no services shall be performed, and the Wyoming State Auditor shall not draw warrants for payment, until this Agreement has been fully executed, approved as to form by the Office of the Attorney General, filed with and approved by A&I Procurement, and approved by the Governor of the State of Wyoming, or her designee, if required by Wyo. Stat. § 9-2-3204(b)(iv).
- R. Insurance Requirements.** The City is protected by the Wyoming Governmental Claims Act, Wyo. Stat. § 1-39-101, *et seq.*, and certifies that it is a member of the Wyoming Association of Risk Management (WARM) pool or the Local Government Liability Pool (LGLP), Wyo. Stat. § 1-42-201, *et seq.*, and shall provide a letter verifying its participation in the WARM or LGLP to WYDOT.
- S. Publicity.** Any publicity given to the projects, programs, or services provided herein, including, but not limited to, notices, information, pamphlets, press releases, research, reports, signs, and similar public notices in whatever form, prepared by or for the City, shall identify WYDOT as the sponsoring agency and shall not be released without prior written approval from WYDOT.
- T. Severability.** Should any portion of this Agreement be judicially determined to be illegal or unenforceable, the remainder of the Agreement shall continue in full force and effect, and the parties may renegotiate the terms affected by the severance.

- U. Sovereign Immunity and Limitations.** Pursuant to Wyo. Stat. § 1-39-104(a), the State of Wyoming and WYDOT expressly reserve sovereign immunity by entering into this Agreement and the City expressly reserves governmental immunity. Each of them specifically retains all immunities and defenses available to them as sovereign or governmental entities pursuant to Wyo. Stat. § 1-39-101, *et seq.*, and all other applicable law. The parties acknowledge that the State of Wyoming has sovereign immunity and only the Wyoming Legislature has the power to waive sovereign immunity. Designations of venue, choice of law, enforcement actions, and similar provisions shall not be construed as a waiver of sovereign immunity. The parties agree that any ambiguity in this Agreement shall not be strictly construed, either against or for either party, except that any ambiguity as to immunity shall be construed in favor of immunity.
- V. Taxes.** The City shall pay all taxes and other such amounts required by federal, state, and local law, including, but not limited to, federal and social security taxes, workers' compensation, unemployment insurance, and sales taxes.
- W. Termination of Agreement.** This Agreement may be terminated, without cause, by WYDOT upon thirty (30) days written notice. This Agreement may be terminated by WYDOT immediately for cause if the City fails to perform in accordance with the terms of this Agreement. If at any time during the performance of this Agreement, in the opinion of WYDOT, the work is not progressing satisfactorily or within the terms of this Agreement, then, at the sole discretion of WYDOT and after written notice to the City, WYDOT may terminate this Agreement or any part of it. As of the termination date, the City will be entitled to a pro rata payment for all work accomplished and accepted by WYDOT; however, the City shall be liable to WYDOT for the entire cost of replacement services for the duration of the Agreement term.
- X. Third-Party Beneficiary Rights.** The parties do not intend to create in any other individual or entity the status of third-party beneficiary, and this Agreement shall not be construed so as to create such status. The rights, duties, and obligations contained in this Agreement shall operate only between the parties to this Agreement and shall inure solely to the benefit of the parties to this Agreement. The provisions of this Agreement are intended only to assist the parties in determining and performing their obligations under this Agreement.
- Y. Time is of the Essence.** Time is of the essence in all provisions of this Agreement.
- Z. Titles Not Controlling.** Titles of sections and subsections are for reference only and shall not be used to construe the language in this Agreement.
- AA. Waiver.** The waiver of any breach of any term or condition in this Agreement shall not be deemed a waiver of any prior or subsequent breach. Failure to object to a breach shall not constitute a waiver.
- BB. Counterparts.** This Agreement may be executed in counterparts. Each counterpart, when executed and delivered, shall be deemed an original and all counterparts

together shall constitute one and the same Agreement. Delivery by the City of an originally signed counterpart of this Agreement by facsimile or PDF shall be followed up immediately by delivery of the originally signed counterpart to WYDOT.

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8. **Signatures.** The parties to this Agreement, either personally or through their duly authorized representatives, have executed this Agreement on the dates set out below, and certify that they have read, understood, and agreed to the terms and conditions of this Agreement.

The Effective Date of this Agreement is the date of the signature last affixed to this page.

CITY:
CITY OF CHEYENNE

ATTEST:

Signature

Patrick Collins, Mayor

Print Name & Title

Date

Date

WYDOT:
WYOMING DEPARTMENT
OF TRANSPORTATION

ATTEST:

Caitlin Casner, Secretary
Transportation Commission of Wyoming

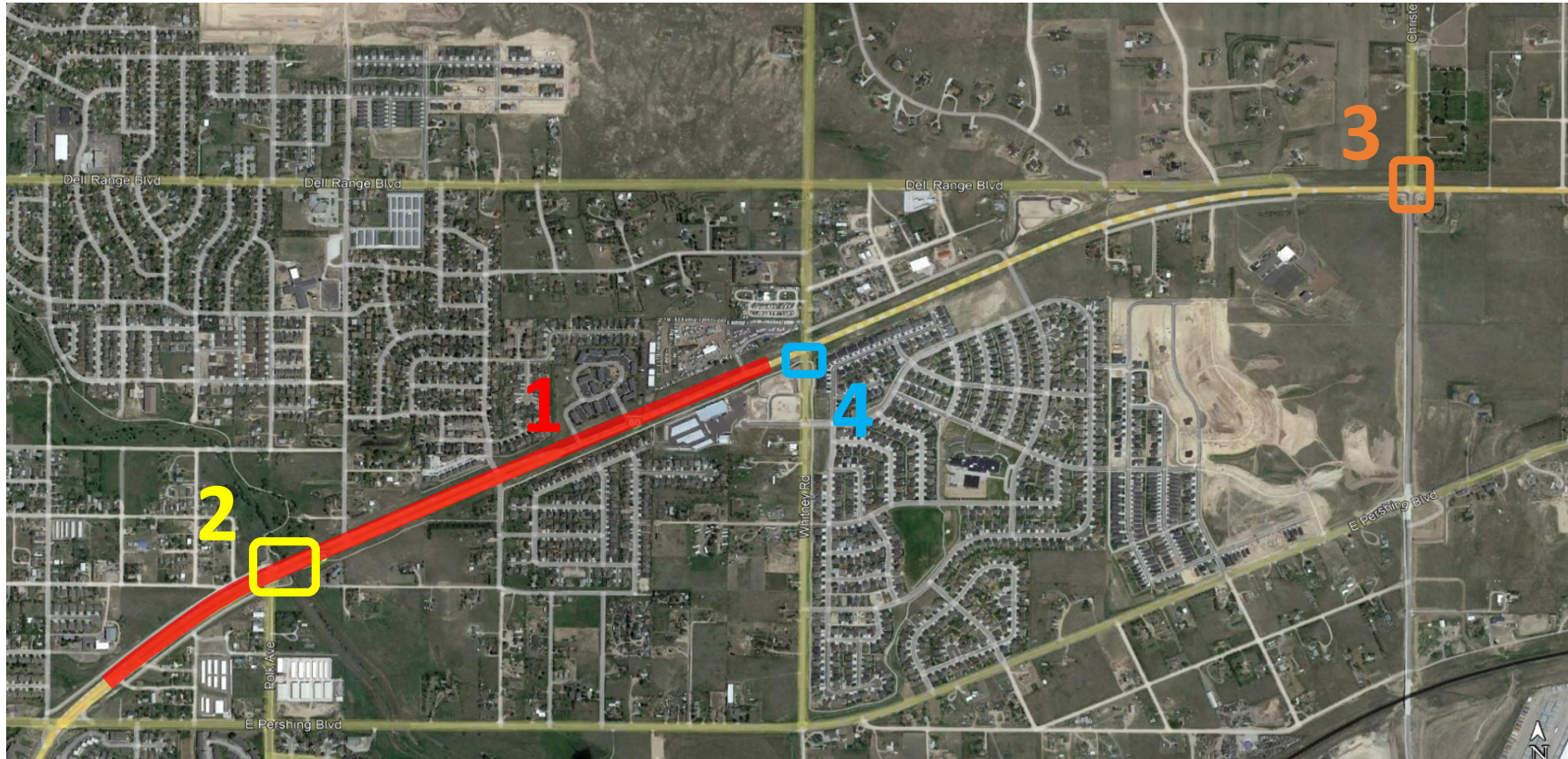
Mark J. Gillett, P.E., Chief Engineer

Date

Approved as to form:

Tor: *Jodi A. Danneberg #1233591*
Tyler M. Renner,
Supervising Attorney General
Date agreement prepared: 8/14/2023

8-14-23
Date



- 1 Decorative Concrete in Median Island
- 2 Removal and Realignment of Greenway & Related Work
- 3 Intersection Lighting
- 4 Re-Align South Leg of Intersection

EXHIBIT B

Summary of Project Costs

Project ARSCT N561A02
US 30/Pershing Blvd. to Christensen Road
Cheyenne Streets
Laramie County

August 9, 2023

Costs were prepared by WYDOT using information provided by the City.

Estimated Project Costs:

Project Components		Estimated Cost
Intersection Lighting at US 30 & Christensen Road		\$ 63,000.000
Decorative Concrete placed in US 30 Median		\$ 433,000.00
Removal of existing Greenway, walls, pumps, etc.		\$ 68,000.00
Install new Greenway path		\$ 86,000.00
Realign south leg of US 30 & Whitney Road Intersection		\$ 250,000.00
Estimated Construction Costs	=	\$ 900,000.00
10% Preliminary Engineering	=	\$ 90,000.00
10% Construction Engineering	=	\$ 90,000.00
Total Direct Costs (TDC)	=	\$ 1,080,000.00
Indirect Cost Allocation Plan (ICAP) (11% of TDC)	=	\$ 118,800.00
Total Project Costs	=	\$ 1,198,800.00

NOTE: All costs shown are rounded to the nearest even dollar.

The above figures are for estimating purposes only and are subject to revision throughout the life of this project.